

**DEPARTMENT SEVEN  
JUDGE TIM P. KAM  
707-207-7307  
TENTATIVE RULINGS SCHEDULED FOR  
TUESDAY, SEPTEMBER 22, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

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**CAPITAL ONE N.A. vs. DENNIS C. REGRESADO  
Case No. CL25-04169**

Motion by Plaintiff to Set Aside Dismissal and Enter Judgment

**TENTATIVE RULING**

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

Plaintiff's motion is denied without prejudice. Should Plaintiff seek to refile their motion, Plaintiff is directed to effect service of the motion papers in the same manner as required for service of summons and complaint.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

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**MATTHEW NITTINGER; ET AL. vs. DANIEL WAYNE SAUVAGEAU; ET AL.  
Case No. CU25-00844**

Motion by Plaintiff MATTHEW NITTINGER to Compel Defendant DANIEL WAYNE SAUVAGEAU for Compliance with Production of Documents in Response to Requests

for Production of Documents, Set One; Further Responses to Form Interrogatories—Construction Litigation; and for Monetary Sanctions

### TENTATIVE RULING

With the recent service of supplemental responses by Defendant DANIEL WAYNE SAUVAGEAU (“SAUVAGEAU”) to the four form interrogatories at issue in this motion, this motion is now moot as to those interrogatories (except as to monetary sanctions, addressed below).

Although SAUVAGEAU has recently produced thousands of pages of documents in response to the requests for production, his counsel recently made an admission that there may be more responsive documents not yet produced.

As I explained, it is my intention to produce the entirety of my clients jobfile. I have a concern that in the transmittal process, some early correspondence was inadvertently dropped from the materials Bates numbered and produced. I promised to look further and schedule a Zoom with my client in an effort to make sure that all of the correspondence is located and produced. I will try to have that accomplished by the end of next week.

SAUVAGEAU’s counsel never did advise as to whether he was able to have a Zoom meeting with SAUVAGEAU, and/or obtained any more documents.

In addition, in his supplemental declaration in support of the reply, Plaintiffs’ counsel noted that one of the document requests, No. 17, asked for all communication between SAUVAGEAU and all subcontractors who performed work on the project from January 31, 2022 to present. Plaintiffs’ counsel further claimed that no direct communications had been produced for 20 contractors, subcontractors and materialmen who performed work on the project. As to No. 41, asking for production of all general and professional liability policies, Plaintiffs’ counsel claims that none have been produced.

A party on which requests for production have been propounded has a duty to make a “diligent search and a reasonable inquiry” in an effort to comply, and if an inability to produce is claimed, “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”, and to “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” C.C.P. §2031.230.

The court therefore compels further production and/or further verified responses to the requests for production, sufficient to confirm that all responsive documents within SAUVAGEAU’s possession, custody or control have been produced, or, for any such documents no longer within SAUVAGEAU’s possession, custody or control, to meet the requirements of C.C.P. §2031.230.

The court compels this further production and/or further verified responses to the requests for production be completed and served within 30 days of the service of this order.

As to the issue of monetary sanctions:

Both C.C.P. §2030.300(d) [interrogatories] and §2030.320(b) [requests for production] mandate sanctions against the losing party on a motion to compel further responses/compliance, unless the court finds that this party acted with substantial justification or that other circumstances weigh against the imposition of the sanctions.

The court finds that SAUVAGEAU and his counsel have not provided a reasonable excuse for the considerable delay that has already occurred in providing the responses and production at issue in this motion, and thus finds that joint and several sanctions against both are justified.

The court also finds that the amount of sanctions sought by Plaintiffs' counsel exceeds the amount the court finds reasonable, particularly regarding the amount of time claimed to have been spent on the motion papers and the time estimated to be incurred thereafter. It therefore imposes sanctions in the total amount of \$5400.00 (12 hours x 450.00), jointly and severally against DANIEL WAYNE SAUVAGEAU and his counsel Mark J. Mulkerin of the law firm Burke, Williams & Sorensen, LLP, payable to Plaintiff's counsel within 30 days of the service of this order.

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**MARK LEMLEY vs. DARABARA SINGH; ET AL.**  
**Case No. CU25-09863**

Application for Determination of Good Faith Settlement

TENTATIVE RULING

**THE PARTIES ARE TO APPEAR.**

At the hearing, the Court's tentative ruling is to grant the unopposed application for good faith settlement.

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**STEPHANIE NELSON vs. FORD MOTOR COMPANY**  
**Case No. CU26-02728**

Demurrer and Motion to Strike

TENTATIVE RULING

Defendant FORD MOTOR COMPANY demurs to the causes of action for violation of the Consumer Legal Remedies Act (the “CLRA”), breach of implied warranty, fraud, and unfair competition within Plaintiff STEPHANIE NELSON’s complaint. The complaint concerns an alleged defective 6F35 transmission in Plaintiff’s 2016 Ford Fusion (the “Vehicle”). Plaintiff alleges that Defendant fraudulently concealed the existence of the defect at the time she purchased the Vehicle.

Defendant simultaneously moves to strike the complaint’s prayers for punitive damages, attorneys’ fees, and injunctive relief.

**Notice of Tentative Ruling.** Defendant’s notices of demurrer and motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Defendant is advised to observe local rules going forward.

**Statutes of Limitations.** The statutes of limitations for fraudulent inducement and CLRA claims are both three years. (Code Civ. Proc., § 388, subd. (d) [fraud]; Civ. Code, § 1783 [CLRA].) The statutes of limitations for an implied warranty claim under the Uniform Commercial Code and the unfair competition law are four years. (Cal. U. Com. Code § 2725 [implied warranty]; Bus. & Prof. Code, § 17208 [UCL].) A demurrer based on the statute of limitations must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCourt* (2001) 91 Cal.App.4th 875, 881.) It is not sufficient that the claim only might be barred. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

Plaintiff alleges that the Vehicle was purchased on December 13, 2017. (Complaint at ¶ 5.) The complaint was filed on March 20, 2026. The challenged causes of action appear time-barred on the face of the complaint. It is the duty of a plaintiff who wishes to utilize tolling doctrines to allege facts supporting application of those doctrines. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) Plaintiff does not allege facts demonstrating that the doctrines of delayed discovery, fraudulent concealment, or equitable tolling apply in this case.

The delayed discovery doctrine requires facts showing when the plaintiff discovered or reasonably should have discovered his claim. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) The complaint contains only an overly generic statement that Plaintiff filed suit within two years of when she discovered or should have discovered her claims. (Complaint at ¶ 152.)

Fraudulent concealment as a tolling doctrine does not assist Plaintiff, for similar reasons. The complaint alleges insufficient facts showing in what way Defendant’s fraudulent conduct caused Plaintiff’s claims to grow stale. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192.) Defendant must have done something more than simply continue the nondisclosure that is the basis for Plaintiff’s fraud cause of action. (*Trantafello v. Medical Center of Tarzana* (1986) 182 Cal.App.3d 315, 321.) Though the complaint contains allegations that Defendant instructed its dealers and

technicians to tell consumers there was nothing wrong with 6F35 transmissions and that the symptoms of the defect were “normal driving characteristics” there are no allegations that Plaintiff was told this, as there are no particular allegations of her interactions with Defendant’s dealers and/or technicians. (Complaint at, e.g., ¶¶ 135, 152.) It is also important to know when Plaintiff realized she had claims against Defendant for purposes of the fraudulent concealment doctrine, a “close cousin” of the delayed discovery doctrine, because the fraudulent concealment doctrine will not assist a plaintiff on notice of a potential claim. (*MGA Entertainment, Inc. v. Mattel, Inc.* (2019) 41 Cal.App.5th 554, 565.)

Equitable tolling has no application here. The elements of equitable tolling are timely notice to the defendant, lack of prejudice to the defendant, and reasonable and good faith conduct by the plaintiff. (*Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, 726.) It is not required that a plaintiff pursue an alternative legal remedy. (*Ibid.*) However, pursuit of an alternative legal remedy is the most common basis for application of equitable tolling and is the basis on which Plaintiff founds her equitable tolling argument here. (Complaint at ¶ 157.) However, the complaint states that Plaintiff first brought the instant claims against Defendant in federal court in March 2024. (*Ibid.*) This is well after the three- and four-year statutes of limitations applicable to her claims expired. Plaintiff cannot toll statutes that were already expired when she began federal court litigation against Defendant.

A plaintiff who fails to allege facts supporting application of tolling doctrines should normally be given leave to do so. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) The court finds that leave to amend is appropriate here.

**Motion to Strike.** Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Plaintiff’s challenged causes of action all fail due to time bars. Plaintiff does not contend that her remaining causes of action could support punitive damages or injunctive relief. However, Plaintiff’s request for attorneys’ fees is based on Code of Civil Procedure section 1021.5, not any of the challenged causes of action. (Complaint at ¶ 253.)

**Conclusion.** Defendant’s demurrer is sustained with leave to amend. Defendant’s motion to strike is granted with leave to amend as follows: the complaint’s requests for punitive damages and injunctive relief are ordered struck.

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**IN THE MATTER OF CITY OF BENICIA vs. STEPHEN CLIFFORD BLACK and  
CHERYL ANN BLACK as Trustees of THE STEVEN BLACK AND CHERYL ANN  
BLACK REVOCABLE LIVING TRUST; ET AL.**

**Case No. CU26-05823**

Petition for Order to Abate Substandard Building and Appoint Receiver

**TENTATIVE RULING**

If the title owner of real property fails to effect cleanup/repairs within a reasonable period of time, Health & Safety Code §17980.7(c) authorizes the public entity to seek court appointment of a receiver, after service of the petition papers on that owner in the manner required for service of summons.

If the owner fails to comply within a reasonable time with the terms of the order or notice issued pursuant to Section 17980.6, the following provisions shall apply:

. . .

(c) The enforcement agency, tenant, or tenant association or organization may seek and the court may order, the appointment of a receiver for the substandard building pursuant to this subdivision. In its petition to the court, the enforcement agency, tenant, or tenant association or organization shall include proof that notice of the petition was posted in a prominent place on the substandard building and mailed first-class mail to all persons with a recorded interest in the real property upon which the substandard building exists not less than three days prior to filing the petition. **The petition shall be served on the owner pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2 of the Code of Civil Procedure . . . .** (emphasis added)

While the posting and pre-filing notice requirement has been established by BENICIA the court cannot find any proof of service of the petition/motion papers on all interested parties in a manner authorized for service of summons. The only post-filing proof of service on file indicates service only of the petition itself, not notice of the hearing, motion, or supporting papers. Furthermore, the only manner of service indicated for the petition itself was posting in a conspicuous place on the property.

Post-filing post and mail service is authorized only for unlawful detainer actions. (Code Civ. Proc., § 415.45.)

Generally, except as to out-of-state respondents, mail service is insufficient, and personal or substituted service is preferred. (Code Civ. Proc., §§ 415.10-415.40.)

If despite reasonable diligence service cannot be effected in a manner authorized for service of summons and complaint a plaintiff making such a showing of diligence can seek court authorization to serve by publication. (Code Civ. Proc., § 415.50.)

The court additionally observes that the petition states that Respondents JOSEPH H. LALLAMANT II JR., YEN THI LALLAMANT, JOSEPH H. LALLAMONT SR., and AVIS LALLAMANT possess joint tenancy interests the property at issue. BENICIA named a Doe respondent as JD DEVELOPERS, LLC on July 14, 2026. There is no indication of service of any papers on these apparently interested parties.

The court therefore continues this matter to DATE to give BENICIA time to serve all interested parties with notice of the petition, motion, and hearing in a statutorily authorized manner.

It also concerns the court that the proposed receiver is based in Southern California and therefore can be expected to claim significantly higher travel expenses than one based in Northern California. The court requests an explanation as to why BENICIA has proposed a Southern California receiver.

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Department 7 is inviting you to a scheduled ZoomGov meeting.  
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlieXJTcGxIVHRXZz09>

**Meeting ID: 161 155 4664**

**Passcode: 818575**

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